

## M/s Three Star Paper Mills Pvt. Ltd. v. State of U.P.

Allahabad High Court · Division Bench · 9 September 2014 · Writ-C No. 48178 of 2014 · WRIT - C No. - 48178 of 2014 · **Writ dismissed; petitioner relegated to Clause 7.10 statutory remedy.**

### HEADNOTE

A consumer seeking quashing of an electricity-bill order and a rebate must first use the statutory remedy under Clause 7.10 of the Electricity Supply Code, 2005. The writ was dismissed with liberty to pursue that forum.

### FACTUAL SUMMARY

The petitioner paper mill filed a writ petition to quash an order dated 29.4.2014 and to obtain a direction for rebate on electricity bills. After hearing counsel for the petitioner and the Standing Counsel, the Division Bench noted a statutory remedy under the Electricity Supply Code, 2005, and did not examine the rebate claim or the contents of the impugned order on merits.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::7.10

statutory-remedy-billing-grievance

#### HOLDING

Where a consumer seeks quashing of an electricity-bill order and a rebate, Clause 7.10 of the Electricity Supply Code, 2005 is the statutory remedy; the writ petition is dismissed with liberty to pursue that forum. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — MERITS OF THE 29.4.2014 ORDER AND THE CLAIM FOR REBATE ON ELECTRICITY BILLS

Writ dismissed solely for the Clause 7.10 remedy; no finding on the rebate or the impugned order. ¶ 1